

I. Request

1. The Ministry of Foreign Affairs, through the Directorate-General for Consular Affairs and Portuguese Communities, requested the National Data Protection Commission (CNPd) to express its opinion on the Draft Decree-Law aimed at transposing into domestic law Directive (EU) No. 2019/997 of the Council, dated June 18, which establishes the EU Temporary Travel Document (EU TTD) and repeals Decision 96/409/CFSP.
2. The CNPD issues its opinion within the scope of its powers and competencies, as an independent administrative authority with the authority to oversee the processing of personal data, granted by paragraph c) of paragraph 1 of Article 57, paragraph b) of paragraph 3 of Article 58, and paragraph 4 of Article 36, all of Regulation (EU) 2016/679, of April 27, 2016 – General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of Article 3, paragraph 2 of Article 4, and paragraph a) of paragraph 1 of Article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in domestic law.

II. Analysis

3. Decree No. 45/97, of September 3, approved Decision 96/409/CFSP of the Representatives of the Governments of the Member States, gathered in the Council, which created a common temporary travel document (TTD) to be issued by Member States to citizens of the European Union in territories of countries where the Member State of origin of those citizens does not have permanent diplomatic or consular representation.
4. The Treaty on the Functioning of the European Union (TFEU) enshrined EU citizenship as a fundamental status of nationals of Member States. This grants EU citizens the right to benefit, in the territory of a third country where the Member State of which they are nationals is not represented, from the protection of the diplomatic and consular authorities of another Member State, under the same conditions as the nationals of that Member State, pursuant to paragraph c) of paragraph 2 of Article 20 of the TFEU.
5. Directive (EU) 2015/637 of the Council, of April 20, 2015, implements this right by establishing the necessary cooperation and coordination measures, referring to EU TTDs as a type of consular assistance to be provided by the embassies and consulates of Member States to unrepresented Union citizens.
6. According to the Preamble, it is now necessary to update the rules of Decree No. 45/97, ensuring coherence between, on one hand, the specific conditions and the process for issuing TTDs and, on the other, the general rules on consular protection established in Directive (EU) 2015/637, which has since been transposed into domestic law by Decree-Law No. 51/2021, of June 15, which approves the new Consular Regulation.
7. Directive (EU) 2019/997 of the Council, of June 18, 2019, creates an EU TTD and repeals Decision 96/409/CFSP. The EU TTD provides an added layer of security, consisting not only of a uniform form but also of a uniform sticker. Its scope is expanded beyond unrepresented European citizens to include the nationals themselves, citizens of another Member State represented in the country where they seek to obtain an EU TTD, and family members who are not EU citizens accompanying EU citizens, provided that these family members are legal residents in a Member State.
8. Thus, the present Draft establishes rules regarding the conditions and procedures for unrepresented citizens in third countries to obtain an EU temporary travel document (hereinafter referred to as "EU TTD") and creates a uniform model for these documents.
9. Under Article 4 of the Draft, a request for an EU TTD submitted by unrepresented citizens in third countries whose passports or travel documents have been lost, stolen, or destroyed, or that cannot be obtained within a reasonable time, requires consultation with the Member State of nationality, pursuant to paragraph 1 of Article 43 of Decree-Law No. 51/2021, of June 15, for the purpose of verifying the nationality and identity of the applicant.
10. Paragraph 1 of Article 43 of the aforementioned Decree-Law provides that the consultation with the

Ministry of Foreign Affairs of the Member State of which the person claims to be a national is made through the competent contact point, or, if applicable, through the competent embassy or consulate of that State, indicating all relevant available information, including the foreseeable costs of the acts to be performed, for the purpose of granting consular protection by the Member State of the European Union not represented in the third country or sending any additional information that may be necessary.
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11. Under the terms of paragraph 2 of Article 4 of the Project, the Authority providing assistance communicates to the Member State of nationality all relevant information, including: the surname and the given name(s) of the applicant, nationality, date of birth, and sex; the facial image of the applicant collected by the Authority providing assistance at the time of application submission or, only if this is not feasible, a digitized or digital photograph of the applicant, based on the standards established in part 3 of document 9303 of the International Civil Aviation Organization (ICAO) regarding machine-readable travel documents (seventh edition, 2015); a copy or a scan of all available identification means, such as an identity card or a driving license, and, if applicable, the type and number of the replaced document and the national or social security registration number.

12. Although this provision merely transcribes the content of point b) of paragraph 2 of Article 4 of Directive (EU) No. 2019/997, of June 18, the CNPD once again expresses reservations regarding the value of proof of identity that a copy of an identification document raises, as the digitization of an identification document is easily manipulable, thus not guaranteeing the veracity of the data, in violation of the principles of accuracy and completeness of personal data enshrined in points d) and f) of paragraph 1 of Article 5 of the GDPR.

13. It is reaffirmed that a simple copy of identification documents constitutes a document without any legal probative value, precisely due to the ease of its manipulation, and therefore it is recommended to revise paragraph 2 of Article 4 of the Project.

14. It should be noted that the consulted Member State of nationality must respond to the inquiry in accordance with paragraph 3 of Article 10 of Directive (EU) 2015/637 and confirm whether the applicant is its national.

15. According to paragraph 7 of this section, the beneficiary of an EU TVP returns this document, regardless of its expiration, upon arrival at the final destination.

1 Note that paragraph 5 of Article 2 of the Project defines "Authority providing assistance" as the external peripheral services of the Ministry of Foreign Affairs with responsibilities in the consular area, under the terms of Article 3 of Decree-Law No. 51/2021, of June 15, which approves the Consular Regulation, honorary consuls with competence to issue provisional travel documents, under the terms of Article 21, and vice-consuls, until the extinction of the current vice-consulates, under the terms of Article 74 of Decree-Law No. 51/2021, who receive a request for an EU TVP;

2 See Opinion No. 44/2023, of May 16, and Opinion No. 31/2017, of May 17, 2017, and also Opinion No. 142/2020, of December 3, 2020.

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16. Under the terms of paragraph 9 of Article 4 of the Project, the standardized application form for the EU TVP and the obligation to return the EU TVP upon arrival are approved by a joint order of the Minister of Foreign Affairs and the Minister of Internal Administration.

17. Therefore, the aforementioned order should be subject to assessment by the CNPD, within the scope of the powers conferred by point c) of paragraph 1 of Article 57, combined with point b) of paragraph 3 of Article 58, and with paragraph 4 of Article 36, all of the GDPR in conjunction with the provisions of point a) of paragraph 1 of Article 6 of Law 58/2019, of August 8, which implements this legal diploma in the internal legal order.

18. From the perspective of the right to the protection of personal data, Article 10 of the Project is relevant, which merely transcribes Article 15 of Directive (EU) No. 2019/997, of June 18, which it aims

to transpose. Here, the purposes for collecting personal data are defined (to verify the identity of the applicant, through the procedure provided in Article 4, to print the uniform EU TVP sticker, and to facilitate the travel of that applicant) and they cannot be processed for other purposes, in compliance with the purpose limitation principle enshrined in point b) of paragraph 1 of Article 5 of the GDPR. It also provides for the right of access and rectification of data (in vague terms without regulating the exercise of these rights) and establishes the retention periods for the data.

19. Regarding the security of processing, paragraph 1 of Article 10 of the Project only states that "The Authority providing assistance or the Ministry of Foreign Affairs and the Member State of nationality ensure the adequate security of personal data," without defining any technical or organizational security measures, which undermines the CNPD's ability to comment on compliance with the confidentiality and integrity principle enshrined in point of paragraph 1 of Article 5 of the GDPR.

20. A note regarding paragraph 2 of this article states that "Without prejudice to Law No. 58/2019, of August 8, an applicant for whom an EU TVP is issued has the right to verify the personal data contained therein and, if applicable, request corrections through the issuance of a new document." It is noted that the right of access and rectification of data subjects is enshrined in Articles 15 and 16 of the GDPR, and therefore it is recommended to reference this legal diploma.

21. Regarding the data retention period, paragraph 4 states that "The Authority providing assistance or the Ministry of Foreign Affairs and the Member State of nationality retain the personal data of the applicant only for as long as necessary, including for the collection of the fees referred to in Article 6. These personal data may not, under any circumstances, be retained for a period exceeding 180 days by the
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Authority providing assistance or by the Ministry of Foreign Affairs, or for two years (?)³ by the Member State of nationality. After the expiration of the retention period, the personal data of the applicant is deleted. The principle of data retention limitation provided for in point e) of paragraph 1 of Article 5 of the GDPR is fulfilled.

22. Finally, paragraph 5 of this article establishes that the Authority providing assistance or the Ministry of Foreign Affairs ensures the secure destruction of all EU TVPs returned and all copies related to them as soon as possible. For reasons of clarity and legal certainty, it is recommended to set a specific deadline for the destruction of the EU TVPs, starting from their return.

III. Conclusion

23. In accordance with the terms and grounds set forth above, the CNPD recommends:

- a) The reconsideration of the use of copies or digitization of identification documents as per points 12 and 13;
- b) The amendment of paragraph 2 of Article 10 to refer to the GDPR; and
- c) The establishment of a specific deadline for the destruction of the EU TVPs and the copies related to them, starting from their return.

Approved at the meeting of July 4, 2023

Paula Meira Lourenço (President)

³ Interestingly, the text transcribes the Directive including the typo present in it.